

Court No. - 10

Case :- WRIT - C No. - 39802 of 2016

Petitioner :- Rustam Sahi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pradeep Kumar

Counsel for Respondent :- C.S.C., Mangla Prasad Rai

Hon'ble Arun Tandon, J.

Hon'ble Mrs. Sunita Agarwal, J.

From the records of the present writ petition, it appears that surprise inspection at the premises of the petitioner was conducted on 30.6.2016. The petitioner was found to be involved in the theft of electricity.

In order to avoid his arrest, he stated to have paid a sum of Rs. 1,40,000/- for compounding of the criminal offences.

The petitioner has approached this Court to direct the respondents to decide his objection/representation.

We may only record that after allegations of theft of electricity are found during the surprising inspection provisional assessment is done under Clause 6.8 of the Electricity Supply Code, 2005 against which the petitioner will have a liberty to object under the same clause, which shall be considered and decided in accordance with law.

In view thereof, we **dispose of** the writ petition by providing that in case the petitioner has raised his objection before the Competent Authority all issues shall be examined by the Competent Authority while making final Assessment.

(Sunita Agarwal, J.)

(Arun Tandon, J.)

Order Date :- 29.8.2016

B.K./-